



POLICE DEPARTMENT

-----X
In the Matter of the Disciplinary Proceedings :

- against - :

Police Officer Steven Dulcey :

Tax Registry No. 964497 :

Police Service Area 4 :

FINAL

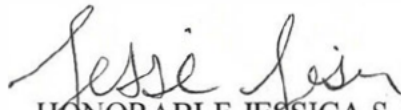
ORDER

OF

DISMISSAL
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Police Officer Steven Dulcey, Tax Registry No. 964497, having been served with written notice, has been tried on written Charges and Specifications numbered 2022-25008 (PODS Case C-031960), as set forth on form P.D. 468-121, dated March 14, 2022 (most recently amended on September 15, 2025), and after a review of the entire record, Respondent is found Guilty of the charged misconduct.

Now therefore, pursuant to the powers vested in me by Section 14-115 of the Administrative Code of the City of New York, I hereby DISMISS Police Officer Steven Dulcey from the Police Service of the City of New York.


HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER

EFFECTIVE: 11/14/25



POLICE DEPARTMENT

October 27, 2025

-----X

In the Matter of the Charges and Specifications	:	Case No.
- against -	:	C-031960
Police Officer Steven Dulcey	:	
Tax Registry No. 964497	:	
Police Service Area 4	:	

-----X

At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Vanessa Facio-Lince
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department: Christine Maloney, Esq.
Department Advocate's Office
One Police Plaza, Room 402
New York, NY 10038

For the Respondent: John Tynan, Esq.
Worth, London & Martinez, LLP
111 John Street, Suite 640
New York, NY 10038

To:

HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

CHARGES AND SPECIFICATIONS

1. Said Police Officer Steven Dulcey, while off duty and assigned to PSA 3, on or about February 19, 2022, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: said Police Officer Dulcey engaged in a physical altercation with an individual known to the Department. *(As amended)*

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

2. Said Police Officer Steven Dulcey, while off duty and assigned to PSA 3, on or about February 19, 2022, conducted inquiries in Department databases that were unrelated to official Department business. *(As added)*

P.G. 219-14, Page 1, Paragraph 2

DEPARTMENT
COMPUTER SYSTEMS

3. Said Police Officer Steven Dulcey, while off duty and assigned to PSA 3, on or about February 19, 2022, failed to make proper notifications after an off-duty incident. *(As added)*

P.G. 212-32, Page 1, Paragraphs 1-2, Note

OFF-DUTY INCIDENTS
INVOLVING UNIFORMED
MEMBERS OF SERVICE

4. Said Police Officer Steven Dulcey, while assigned to PSA 3, during October 2021, failed to provide accurate and current personal information or update said information with the Department, to wit: said Police Officer Dulcey failed to update Department records with his current address. *(As added)*

A.G. 304-16, Page 1, Paragraph 1

PERSONAL
INFORMATION VIA
DEPARTMENT INTRANET

5. Said Police Officer Steven Dulcey, while off duty and assigned to PSA 3, on or about November 29, 2021, failed to make proper notifications after an off-duty incident. *(As added and amended)*

P.G. 212-32, Page 1, Paragraphs 1-2, Note

OFF-DUTY INCIDENTS
INVOLVING UNIFORMED
MEMBERS OF SERVICE

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on September 16, 2025. Respondent, through his counsel, entered a plea of Not Guilty to all the subject charges, except Specification 4 – failure to update Department records with his current address – to which he pled Guilty. The Department called Deputy Inspector James Lynch as a witness. The hearsay statements of the complainant, A.R.¹, were also entered into evidence. Respondent testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner’s review. Having evaluated all of the evidence in this matter, I find Respondent Guilty of the charged misconduct and recommend that he be DISMISSED from the Police Department of the City of New York.

ANALYSIS

The following is a summary of the facts which are not in dispute: Respondent and A.R., who had known each other since high school, began dating in December 2017. According to Respondent, the couple dated on and off until January 2025. Respondent and A.R. also cohabitated for some time while they were dating. Respondent admits that he and A.R. argued a lot during the course of their relationship, but denies that it escalated into physical violence. He admits that on one occasion, February 19, 2022, after a heated verbal altercation, A.R. threatened to call 911, so Respondent did search the Department database to verify whether or not she had called.

The misconduct allegations in dispute concern two incidents of domestic violence, one allegedly occurring on February 19, 2022, and the other on or about November 29, 2021.²

¹ “A.R.” are the initials of Respondent’s former girlfriend, whose identity is known to the Tribunal.

² It is worth noting that the Department Advocate did not charge Respondent with the underlying incident that allegedly occurred on November 29, 2021. They only charged Respondent with the “Failure to Notify the Department” of said incident.

According to A.R.'s hearsay statements, on February 19, 2022, she and Respondent engaged in a verbal altercation that ended with Respondent hitting her. A.R. did not, however, report the incidents until March 9, 2022, when Respondent allegedly made threatening comments about her young son. Pursuant to a Department investigation, it was discovered that A.R. made a 911 call on November 29, 2021, to report that her boyfriend would not leave her house despite numerous attempts to get him out and that he threatened and slapped her. It is alleged that Respondent failed to notify the Department about both these off-duty incidents.

Respondent has disputed these allegations, asserting that: he did not commit any of the physical acts A.R. accused him of committing. Respondent admits, and therefore it is not in dispute, that he did not initiate any communication with this Department regarding the incidents mentioned above because, according to him, there was nothing to report.

The following is a summary of the relevant trial evidence.

Deputy Inspector James Lynch testified that while he was assigned to the Housing Bureau, he was the commander of the investigative unit and oversaw the investigation of Respondent's case. Deputy Inspector Lynch supervised Sergeant Ragner Jorge, who was assigned to investigate this matter but is now retired from the Department. The matter was first brought to the Department's attention when A.R. filed a domestic incident report (hereinafter "DIR") at the 112 Precinct on March 9, 2022. According to Deputy Inspector Lynch, Queens North Investigation conducted an interview with A.R. on March 9, 2022. An audio file and transcript of the interview were introduced into evidence as Department's Exhibits 3 and 3A, respectively. (Tr. 11-13)

At trial, Deputy Inspector Lynch conceded that he never personally met A.R., but he had reviewed the case file thoroughly and recalled having conversations with Sergeant Jorge about

the investigative steps taken in this case. Deputy Inspector Lynch verified that Department's Exhibits 7A and 7B were screenshots of the allegedly threatening text messages between Respondent and A.R. that were shared with Sergeant Jorge during the course of the investigation. He also testified that when Respondent was presented with these screenshots, he did not deny having the conversations with A.R. Deputy Inspector Lynch further explained that the content of these text messages between A.R. and Respondent was the motivating factor for A.R. reporting this case to the police on March 9, 2022. Specifically, according to A.R.'s interview, she interpreted Respondent's text message to insinuate that he had harmed her young son. (Tr. 14-17, 26)

Deputy Inspector Lynch testified that the DIR (Dept. Ex. 5), which was prepared on March 9, 2022, alleged that there were three prior domestic incidents involving Respondent. The more extensive narrative summary, signed by A.R., stated:

On February 19, 2022, a verbal disagreement occurred and it had turned physical once we entered his car. Steven Dulcey grabbed my neck several times, punched me in my ribs and eventually hit my face which led me to have a black eye. Steven Dulcey proceeded to get his belongings in my apartment once we arrived and I thought he would then have left. Instead, he parked outside and continued to harass me via text and call. He then urinated outside of the apartment. We did make up days later. Unfortunately, we have resorted to another argument where he is threatening me and my son, who is five years old. He has harassed me by sending pictures to people we know, making fake social media pages to also harass my friends. (Tr. 17-21; Dept. Ex. 5)

Deputy Inspector Lynch affirmed that part of the Department's investigation revealed that Respondent did not reside at the address that he listed on his personnel file with the Department from October 2021-November 2021. Moreover, in reviewing 911 calls connected to A.R.'s address, it was discovered that A.R. placed a call to 911 on November 29, 2021, requesting assistance. In that call, A.R. reports that her ex-boyfriend, who is a police officer (no name provided), is refusing to leave her home and she wants him out. She further told the 911

operator that he thinks he's "untouchable" because he is a police officer, but he "threatened" her and "slapped her face," so she wants him out of her home. According to Deputy Inspector Lynch, Respondent admitted during his official Department interview that he and A.R. were dating in November 2021. (Dept. Ex. 11A at 00:05-00:23; Tr. 23-24)

During cross-examination, Deputy Inspector Lynch confirmed that after the DIR was taken on March 9, 2022, Respondent was arrested in connection with the allegations made by A.R. and an order of protection was issued on her behalf. However, approximately 90 days later, the matter was dismissed by the Queens District Attorney's Office and the order of protection was vacated. Deputy Inspector Lynch further conceded that the pictures provided by A.R. of her injuries were not dated, so he could not independently verify when they were taken. (Tr. 26-28; Dept. Exs. 8-9)

This tribunal carefully reviewed the transcript and audio file of A.R.'s Department interview. (Dept. Exs. 3, 3A) On that day, A.R. filed a report against Respondent, her "off and on" boyfriend for the last five years. A.R. explained that her purpose in filing the report was to document instances of past abuse, assaults, and threats. She stated that although Respondent had been physically abusive since the beginning of their relationship, the latest incident—the day of her interview—was the "tip of the iceberg," because it was the first time that Respondent insinuated that he would harm her son. Despite filing the report, A.R. emphasized that she did not want him to be arrested, stating, "I never wanted him to lose his job. I don't want him to lose anything." (Dept. Ex. 3A at 3, 5, 12, 23)

In describing the immediate incident at the Department interview, A.R. explained that after an argument via text starting the day before, the dispute continued the following day. She read texts where Respondent said in sum and substance, "You have no idea what I did to your

son back then.” When she asked him about the meaning of this statement, he replied, “his annoying ass crying did piss me off a few times.” A.R. believed this comment insinuated that Respondent may have hit her son in the past further stating, “He knows what to say to make it so that I perceive it in any way I want to.” She further explained that Respondent had previously suggested that nothing would happen to him because he was a police officer, making her feel that “he’s very unpredictable.” (Dept. Ex. 3A at 7-10, 15, 17; Dept Ex. 7B)

A.R. explained that two weeks earlier, on or about February 19, 2022, she and Respondent were involved in what she described as the most violent altercation of their relationship. After a disagreement at a club regarding their social media accounts, the argument turned physical on the drive home. A.R. stated that Respondent struck her in the body and torso, which she described as a “normal occurrence.” During the scuffle, A.R. claimed that she received a black eye as a result of Respondent striking her in the face. A.R. elaborated that “he used his hand, and I got a black eye from it.” Once they arrived at her home, Respondent gathered his belongings, said he was leaving, but instead remained parked outside all night. At one point, Respondent urinated in her backyard. A.R. noted that such behavior was not unusual, describing other instances when Respondent showed up at her apartment to wait outside, harassed her, punched her, or shared screenshots of their private conversations. (Dept. Ex. 3A at 6, 12-15, 20-21)

When asked about the history of physical abuse in her relationship with Respondent, A.R. was clear that in the beginning of their relationship, the abuse was “nonstop.” She recalled that during the height of COVID, “he really knocked me out,” leaving her with a black eye and a chunk of her hair ripped out.³ A.R. clarified that although she sustained bruising on her face from

³ A photo of this eye injury was admitted into evidence as the Department’s Exhibit 9.

the February 19th incident, Respondent did not strike her with a closed fist that day, but rather with an open hand.⁴ A.R. explained that at one point she and the Respondent lived together, but they had not lived together for about three years. She and Respondent mostly spent time together on the weekends as she believed that due to the volatile nature of their relationship, it was not a good idea for Respondent to be around her son. (Dept. Ex. 3A at 14, 18-19)

Respondent testified that he first met A.R. in high school and that they began a romantic relationship in December 2017. The two moved in together in 2018, but cohabitation was short-lived. Respondent explained that she moved out about a year later because the relationship was “on and off.” A.R. has one son from a previous relationship, and Respondent has a daughter from a prior marriage. (Tr. 52-56, 59, 64, 66, 70)

Respondent described a tumultuous relationship between him and A.R, that was “on and off” for approximately eight years. He testified that their most recent dispute occurred on the evening of February 19, 2022, while at a club. The two began arguing after A.R. confronted him for sharing social media information with another woman. As the argument escalated, Respondent agreed to take A.R. home. He testified that during the ride, they exchanged insults but had no physical contact; he did not see her again until about three days later. During this period, the two continued to argue by text. Respondent stated that at one point A.R. threatened to call the police to jeopardize his job. Respondent admitted to using the Department database to verify whether the police had been contacted, but he did not notify his command of the dispute. (Tr. 57-58, 60, 71-74)

Approximately three weeks later, Respondent was instructed to report to his command, where he learned that A.R. had made a report against him. The report stemmed from allegations

⁴ A photo of this injury was admitted as the Department’s Exhibit 8.

made by A.R. that Respondent sent a threatening text about her son during a text dispute the day before and included allegations of past physical abuse. Respondent was arrested, arraigned, and an order of protection was issued, but vacated in the summer of 2022 after the case was dismissed for lack of witness cooperation. Respondent denied making the threat and suggested that A.R. made the report out of spite because, weeks earlier, he told her he planned to apply to the Texas State Troopers and relocate with his daughter and ex-wife, which he believed made her “extremely upset.” When the order of protection was vacated, the two resumed their relationship and began seeing each other regularly on weekends. (Tr. 61-63, 67-68)

Respondent was also questioned about several other alleged incidents of verbal and physical abuse: one in April 2018; a January 2021 dispute in which A.R. alleged he caused her a black eye; and a November 2021 incident in which she allegedly asked him to leave her residence multiple times and called the police when he refused. Respondent denied all these incidents, even after being shown photographs of A.R. with an eye injury. (*See* Dept. Ex. 9) He maintained that he never saw A.R. injured during the duration of the eight-year relationship. With respect to the November 2021 dispute, Respondent denied being told to leave and denied knowledge that A.R. had contacted the police. Although Respondent initially denied that A.R. threatened to call 911, after being confronted on cross-examination with his prior Department interview, he admitted that A.R. had asked him to leave her residence more than twice. (Tr. 64-66, 76, 79-80)

Respondent also admitted to making a comment involving A.R.’s son during a text exchange. He explained that he wrote, “when he grows up, he may have to tell you something,” because “she had hit below the belt, so I decided to as well.” He testified that the statement was intended to imply that A.R. was a bad mother. (Tr. 82)

Respondent was asked what he meant in the text message he sent to A.R. when he wrote, “payback is a bitch.” Respondent explained that it was a response to A.R. dumping his belongings in front of his apartment, clarifying that he intended to do the same with items she had purchased for him. When asked about the message, “that’s just the tip of the iceberg,” Respondent testified, “I really don’t know what I meant to be honest.” (Tr. 84-85)

Respondent was asked how much time he and A.R. spent together when they were in a relationship. Respondent testified that they saw each other several times a week, including daily rides to and from her workplace and on weekends. He was then shown photographs of A.R.’s purported injuries and asked whether he recalled seeing A.R. with injuries to her face. Respondent, however, denied ever seeing A.R. with injuries, though he acknowledged the photographs were consistent with injuries caused by being struck, based on his experience of responding to domestic violence incidents. (Tr. 85-87; *see* Dept. Exs. 8 & 9)

With respect to the specification alleging Failure to Update Personal Information, Respondent acknowledged that officers are required to maintain current contact information with the Department. He further accepted responsibility for failing to update his address, stating: “honestly it was just my own negligence. I really didn’t think about it.” (Tr. 69) Regarding the charge of Computer Misuse, on cross-examination, Respondent conceded that while off duty, he used his Department-issued cellphone to run inquiries for 911 calls from A.R.’s home on February 19, 2022, because she had threatened to call the police.

In this case, the credibility assessment of the witnesses will be dispositive. In assessing witness credibility, the trier of fact should consider a wide range of factors, including but not limited to witness demeanor, corroborating evidence, the consistency of a witness account both at trial and over time, the degree to which the witness is interested in the outcome of the case, the

potential prejudice or bias of the witness, and the degree to which the witness accounts are logical and comport with common sense and general human experience. These factors take on greater importance when the Department relies primarily on hearsay evidence to meet its burden of proof.

An overlay to this dynamic is the particular complexity of assessing allegations of violence by an intimate partner. However, the finder of fact must always weigh the emotional complications of bringing such charges against Respondent's due process right to have all evidence suggesting that the incident did not occur fairly evaluated and considered. The most crucial factor for the tribunal to consider is the individual motivations of the parties to provide truthful information. When placed in proper context, the behaviors of the parties before and after the incident in question may also reveal evidence relevant to credibility assessment.

Additionally, this tribunal must also consider A.R.'s failure to present herself in court for an examination of the allegations she made against Respondent. While she is not obliged to appear, her failure to do so under these circumstances denied the tribunal the opportunity to more carefully scrutinize the totality of her claims in a more holistic manner. However, based upon the totality of the record, I find that A.R.'s hearsay statements, contained in Department's Exhibits 3, 3A, 5 and 11A, bear sufficient indicia of reliability upon which to base findings of fact. I make this finding mindful that she did not appear before the tribunal and present herself for examination; nevertheless, her statements made to police on March 9, 2022 were logical and consistent with other credible evidence in the case. The above-described exhibits encompassed statements made in a police report, to a 911 operator, and interviews with Department investigators. As outlined in detail below, the circumstances under which she made her

statements and the substance of those statements taken together, support a finding that her statements are credible.

Conversely, I find that Respondent's testimony before the tribunal was permeated with self-interest. While any Respondent is interested in the outcome of the proceeding by the potential adverse consequences of a guilty finding, Respondent's self-serving testimony and the selectivity of the evidence he presented in his defense made clear his incentive to advance a false narrative. Furthermore, I found Respondent's trial demeanor was evasive and disingenuous.

Specification 1: Engaging in a Physical Altercation with an Individual Known to the Department

Specification 1 charges Respondent with engaging in a physical altercation with his then-girlfriend, A.R. on February 19, 2022. Respondent denies that he ever struck A.R., while the Department Advocate relies upon the hearsay statements of A.R. and pictures of injury to her face.

On the one hand, counsel for Respondent is correct in pointing out that the alleged physical altercation was not immediately reported and that the picture of A.R.'s alleged injury is not dated. Nevertheless, I disagree with his assertion that no corroboration exists to support A.R.'s hearsay account of abuse.

Preliminarily, I do find A.R.'s rationale for not immediately reporting the incident convincing. A.R. told investigators during her interview that she did not want to get her then-boyfriend in trouble or cause him to lose his job, so she did not report the incident when it occurred. Moreover, since they reconciled a few days later, she did not want to make a report about the incident. In fact, according to A.R., but for Respondent making threats about A.R.'s young son a few weeks later, she probably would never have reported the abuse. The fact that she waited three weeks to report the incident does not discredit her description of it.

I also find the photographs in Department's Exhibit 8 to be corroborative of A.R.'s description of Respondent striking her in the face on February 19, 2022. The photo in evidence shows a bruise under A.R.'s eye that is consistent with being struck in the face.

Respondent did not dispute that he and A.R. had a verbal altercation on the way home from the club on February 19, 2022, but contended that the disagreement was only verbal in nature and specifically denied that it became physical. He claimed that after he dropped A.R. off at her residence, they continued arguing over text messages after he left. When confronted with the picture of A.R.'s alleged injury, he denied ever seeing his then-girlfriend in that condition. This tribunal found Respondent's explanation suspect given his own assertion that they spent "a lot" of time together.

Respondent conceded that hours after this verbal dispute, he took an "E-day," and used the Department database to find out whether A.R. called 911 to file a report against him with the police. He claimed he did this because A.R. threatened to call the police and he wanted to verify whether she had done so. This tribunal finds Respondent's account unpersuasive and the timing of his actions highly suspicious. Respondent's actions demonstrate consciousness of guilt. It is the finding of this tribunal that Respondent used his position as a member of service and his access to Department resources to verify whether A.R. called 911 because he was concerned that he would be penalized if A.R. reported his physical abuse.

Accordingly, I find that the Department has met its burden of proof by a preponderance of the credible, relevant evidence that Respondent engaged in a verbal and physical altercation on February 19, 2022, with his then-girlfriend, A.R. I further find that Respondent's involvement in this incident prejudiced the good order, discipline, and efficiency of this Department. Based upon the foregoing, I find Respondent Guilty of Specification 1.

Prior Domestic Incidents

It is worth noting that on March 9, 2022, when A.R. reported the February 19th incident, she also indicated that this was not the first instance in which Respondent struck her. When asked to elaborate, A.R. stated that domestic abuse had been a part of their relationship from its inception, but she specifically mentioned an incident of domestic violence that occurred in January 2021. A.R. reported that on or about January 2021, there was an incident in which Respondent “really knocked her out” and left her with a black eye. According to A.R., Respondent also “ripped a chunk of her hair out” and punched her with a closed fist in the eye. (See Dept. Ex. 3A at p. 18 and Dept. Ex. 9) While this incident was not reported to police or charged by the Department, this Tribunal is crediting it in support of A.R.’s narrative.

The Department’s investigation also uncovered that on November 29, 2021, there had been another incident of domestic violence between A.R. and Respondent. A 911 call was made from A.R.’s home that day. This tribunal listened to and carefully analyzed the 911 call made from A.R.’s home on November 29, 2021. (Dept. Ex. 11A) From the beginning of the 911 call, A.R. sounds upset and in need of assistance. A.R. reported that she wanted her boyfriend out of her house and needed police assistance to get him out. She further told the 911 operator that her boyfriend thinks he’s “untouchable” because he is a police officer, but he “threatened” her and “slapped” her face, so she wanted him out of her home.

I find the 911 recording was an excited utterance, a firmly rooted exception to the hearsay rule, which, by its nature, is deemed trustworthy. This tribunal further finds that A.R. spoke spontaneously during an ongoing event and she did not have time for reflection or design. Additionally, A.R.’s statements were corroborated, at least in part, by Respondent’s version of the incident.

When asked about the November 2021 incident, Respondent initially claimed he could not recall any such occurrence, but after being confronted with his prior Department interview, he admitted that he was at A.R.'s residence on that day, that she had asked him to leave her residence more than twice and that she threatened to call 911. (Tr. 79) He denied, however, that there was any physical altercation between them. I find Respondent's version of this event unreliable.

Based upon the foregoing, this tribunal finds that it was more likely than not that an incident of domestic violence occurred between A.R. and Respondent November 29, 2021. Although the Department Advocate did not specifically charge Respondent with this incident, it is relevant to Specification 5 discussed below.

Specifications 3 and 5: Failure to Make a Notification After an Off-Duty Incident

I find the Department has met its burden of proof by a preponderance of the credible, relevant evidence that on or about February 19, 2022 and November 29, 2021, Respondent failed to notify the Department that he had been involved in a domestic incident. Patrol Guide procedure 212-32 requires "any off-duty uniformed member of the service who is either a participant in, or a witness to, an unusual police occurrence to: (1) remain at the scene when feasible and consistent with personal safety; and (2) request the response of a patrol supervisor in the precinct of occurrence." P.G. 212-32 further notes, "[f]or purposes of this procedure, an unusual police occurrence shall include family disputes and other incidents of domestic violence in which the officer is either a participant or a witness."

Based upon the findings set forth in Specification 1, I find that the incident, which occurred on February 19, 2022, between Respondent and A.R., was an incident of domestic

violence in which Respondent was a participant. Accordingly, Respondent was bound to report the incident to the patrol supervisor in the precinct of occurrence.

Moreover, as explained above, this Tribunal found that it is more likely than not that the incident on November 29, 2021, occurred as described on the 911 call. Regardless of whether this incident involved an act of physical violence as asserted by A.R. on the call, it nonetheless constitutes a “family dispute” that involved police. Respondent was, therefore, required to make the proper notifications to the Department and failed to do so.

Based upon the foregoing, I find Respondent Guilty of Specifications 3 and 5.

Specifications 2 & 4: Conducting Inquiries in Department Databases Unrelated to Official Department Business and Failure to Update Department Records with Current Address

At trial, Respondent pled guilty to Specification 4, specifically that he failed to provide accurate and current personal information or update said information (his address) with the Department in October 2021. I therefore find Respondent Guilty of Specification 4. During the hearing, Respondent also admitted that he conducted inquiries in Department databases that were unrelated to official Department business on February 19, 2022. Based upon Respondent’s admission at trial, in conjunction with other corroborating evidence, I do find Respondent Guilty of Specification 2 as well. While Respondent offered explanations for this misconduct, this Tribunal does not find the misconduct to be mitigated in any way.

PENALTY

In order to determine an appropriate penalty, this Tribunal, guided by the Department’s Disciplinary System Penalty Guidelines, considered all relevant facts and circumstances, including potential aggravating and mitigating factors established in the record. Respondent’s employment history was also examined. *See* 38 RCNY § 15-07. Information from his personnel

record that was considered in making this penalty recommendation is contained in an attached memorandum.

Respondent, who was appointed to the Department on October 18, 2017, has been found guilty of engaging in a physical altercation with an intimate partner, failing to notify the Department of two off-duty incidents, conducting inquiries in Department databases that were unrelated to official business and failing to provide accurate and current personal information to the Department. The Department Advocate has recommended that Respondent's employment be terminated. I concur with their recommendation.

The presumptive penalty for a physical act of domestic violence is 30 suspension days, dismissal probation, and a 24-week counseling program; the aggravated penalty is termination.⁵ Although Respondent has no prior disciplinary adjudications, there is nothing in this record that would call for a mitigated penalty. This Tribunal does, however, find the following aggravating factors are present in this case:

- 1) Respondent remained in A.R.'s home without permission on November 29, 2021;
- 2) Respondent caused physical injury to A.R. on February 19, 2022,
- 3) Respondent harassed A.R. via text messages;
- 4) Respondent intimidated A.R. by making comments about harming her 5-year-old son;
- 4) Respondent's lack of candor at trial; and
- 5) Respondent's misconduct is likely to have an adverse impact on the Department with regard to its mission, reputation, credibility, and relationship with the community, and the impact upon public trust.

Moreover, Respondent has not accepted responsibility for the domestic disputes, nor has he expressed any remorse for his actions. In fact, Respondent doubled down in his testimony

⁵ A separate section of the Disciplinary Matrix provides for a presumptive penalty of termination for a physical act of domestic violence with "clear and convincing" evidence that Respondent had committed a previous act of domestic violence. Although the preponderance of the credible evidence supports a finding that Respondent engaged in domestic violence in January 2021 and November 2021, I do not find that the quantum of evidence supporting these charges rises to the level of clear and convincing, a higher standard of proof. Accordingly, this tribunal did not apply this section of the Matrix as requested by the Department Advocate's Office.

before the tribunal on the narrative that he did not strike his then-girlfriend and cannot be sure how she he sustained the injuries depicted in the photographs. (Dept. Exs. 8 & 9)

Notwithstanding, Respondent's admissions to some specifications, Respondent's lack of accountability during the investigation and the hearing is especially concerning. Accordingly, the totality of the evidence, in this case, warrants the aggravated penalty of termination.

Police officers are entrusted with the responsibility of protecting the public. Respondent's actions in this case demonstrate just the opposite. Respondent failed to control his emotions and exhibited abhorrent behavior toward his longtime girlfriend. Not only did he inflict physical harm on A.R., but as demonstrated by the text messages in evidence, there was a fair amount of emotional harm inflicted as well. Respondent's continued presence as a member of service would be corrosive to the good order and discipline of the force.

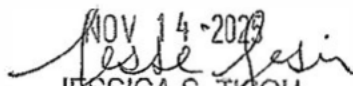
Based upon the entirety of this record. I recommend that Respondent be DISMISSED from this Department.

Respectfully submitted,



Vanessa Facio-Lince
Assistant Deputy Commissioner Trials

APPROVED

NOV 14 2023

JESSICA S. TISCH
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials

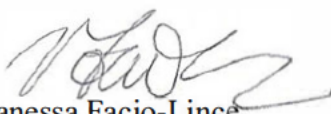
To: Police Commissioner

Subject: SUMMARY OF EMPLOYMENT RECORD
POLICE OFFICER STEVEN DULCEY
TAX REGISTRY NO. 964497
DISCIPLINARY CASE NO. C-031960

Respondent was appointed to the Department on October 18, 2017. On his three most recent annual performance evaluations, he was rated “Exceeds Expectations” for 2024, and twice rated “Meets Standards” for 2022 and 2023.

Respondent has no formal disciplinary history. In connection with the instant matter, he was suspended without pay from March 9, 2022 through April 7, 2022. He was also placed on Level 2 Discipline Monitoring in May 2022; monitoring remains ongoing.

For your consideration.


Vanessa Facio-Lince
Assistant Deputy Commissioner Trials